

Chief Disciplinary Counsel:
Pamela D. Bucy

Office of Disciplinary Counsel
for the State of Montana

Intake Administrator:
Ryne Sorensen

Investigator:
Sheena M. Broadwater

P. O. Box 1099
Helena, Montana 59624-1099
(406) 442-1648
Fax: (406) 442-2685

Paralegal:
Cathy Gordon

June 9, 2026

**CERTIFIED MAIL/RETURN RECEIPT REQUESTED
PERSONAL AND CONFIDENTIAL**

Elvis R. Nuno
1538 Defoe St
Missoula, MT 59802

RE: ODC File No. 26-145
Brian C. Lowney

Dear Mr. Nuno:

The Office of Disciplinary Counsel ("ODC") is in receipt of your ethics grievance concerning attorney Brian C. Lowney of Missoula, Montana.

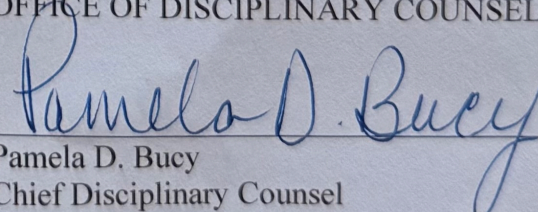
The claims in your grievance are barred by the statute of limitations. More specifically, your charges happened in 2019 which occurred in excess of six years from the date of the filing of your complaint, MRLDE 11(A), and no facts supporting a claim of tolling of the time limit, MRLDE 11(C), or exception to the time limit, MRLDE 11(D), were alleged.

As a result, ODC dismisses your grievance subject to your right to request review by the Commission on Practice. Should you wish to exercise your right of review, you must submit a written request to ODC on or before **July 9, 2026**, thirty (30) days from the date of this letter. Your request should include the basis for your appeal, including why you believe there has been attorney misconduct, and the factual basis of your position. ODC will in turn forward the entire file to the Commission on Practice for its review.

A copy of this letter is being provided to Mr. Lowney, so he is advised of the dismissal of this matter and your right to request review.

Sincerely,

OFFICE OF DISCIPLINARY COUNSEL


Pamela D. Bucy
Chief Disciplinary Counsel

c. Brian C. Lowney, Esq.